

Court No. - 21

Case :- WRIT - C No. - 6373 of 2023

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ram Brij Napit

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has filed the instant petition praying for quashing of the order dated 19.10.2022 passed by respondent No. 5 in compliance of an order of this Court dated 19.09.2022 in Writ-C No. 25432 of 2022 wherein the petitioner had challenged the recovery citation dated 02.04.2022. The said writ petition was disposed of with direction to respondent No. 5 to decide the objection of the petitioner against the impugned demand by means of a speaking order in terms of Clause 6.5 of the Electricity Supply Code, 2005. The finding returned in the impugned order is that a sum of Rs. 4,71,073.83/- was due against the petitioner on the date of permanent disconnection.

The order also records that the petitioner had approached the Permanent Lok Adalat in respect of the same grievance. The complaint filed by the petitioner before Permanent Lok Adalat is registered as P.L.A. Case No. 07 of 2022 and the said fact was not disclosed by the petitioner in his previous writ petition.

Learned counsel for the petitioner tried to contend that the amount being shown as due against the petitioner is incorrect.

We refrain from entering into the said issue as it requires appreciation of evidence and also for the reason that the petitioner has already approached Permanent Lok Adalat in respect of the same cause and the case is pending.

Accordingly, we dispose of the instant petition by providing that the petitioner may challenge the impugned order also, if so

advised in the pending proceedings before the Permanent Lok Adalat or take recourse to such other proceedings as may be advised.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.2.2023

Ruhi